

decision – which was dismissed, and Plaintiff has already been removed from and vacated the Property, there is no longer any case to be consolidated.

Conclusion

Plaintiff's motion to consolidate the unlawful detainer action, case no. MS25-0977, with this action is **denied**.

13. 9:00 AM CASE NUMBER: C25-02635
CASE NAME: LORENDIA HOUSE VS. BARCELON ASSOCIATES MANAGEMENT CORP.
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: BARCELON ASSOCIATES MANAGEMENT CORP.
TENTATIVE RULING:

Before the Court is a demurrer filed by defendant, Barcelon Associates Management Corp. The demurrer is **sustained with leave to amend**, as discussed below. Any amended complaint shall be filed and served on or before July 13, 2026. If plaintiff elects not to amend, defendant's time to answer shall run from that date.

Background

In September of 2025, plaintiff Lorenda House, a 63-year-old female, filed a complaint against Barcelon Associates Management Corp. ("defendant") and Does 1-30. (Complaint, ¶¶11-12.) Plaintiff alleges she was a non-exempt manager / admin employee of "defendants" from approximately March 9, 2017 until February 28, 2023. (*Ibid.*) In or about September 2022, plaintiff felt severe stress from her job and therefore took "family medical leave." (*Id.* at ¶13.) While on leave, in October, plaintiff's mother died and plaintiff felt "further stress and anxiety." (*Ibid.*) Plaintiff returned to work around November 13, 2022. (*Ibid.*)

Upon her return to work, plaintiff's job duties were taken away. (Complaint, ¶14.) She was not allowed to check the mail or answer phone calls and when she lost her work keys, she was not given another copy. (*Ibid.*) Plaintiff's job duties were given to younger coworkers, which she complained about to "Victoria and Defendant's Board of Directors." (*Ibid.*)

Plaintiff alleges her employment was wrongfully terminated due to her age and disability / medical condition, in retaliation for her reasonable request for accommodation and for taking the medical leave, and in retaliation for her complaints of discrimination based on her age. (Complaint, ¶15.) She further alleges that, although she used her personal mobile phone for work, and worked off the clock, she was not compensated for such off-the-clock work, or reimbursed for the personal device. (*Id.* at ¶¶16-17.)

The complaint sets forth causes for action for (1) Failure to Reimburse Business Expenses, (2) Age Harassment / Discrimination, (3) Disability / Medical Condition Discrimination, (4) Failure to Engage in the Interactive Process, (5) Failure to Accommodate Disability, (6) Failure to Take Reasonable Steps to Prevent Harassment, Discrimination, and Retaliation, (7) Retaliation, (8) Wrongful Termination, (9) Unfair Business Practices, (10) Failure to Pay Minimum, Regular, And Overtime Wages, (11) Failure to Pay Waiting Time (Wage Continuation) Penalties, and (12) Failure to Provide Accurate, Itemized Wage Statements.

Defendant responded by making efforts to meet and confer, then filing the present demurrer to the third, fourth, and fifth causes of action pursuant to Code of Civil Procedure section 430.10, subdivision (e). (See Declaration of Danielle C. Cepeda in Support of Demurrer.)

Plaintiff opposes the demurrer.

Standard

In reviewing the sufficiency of a complaint, all material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Allegations must be liberally construed by drawing reasonable inferences from the facts pleaded, and with a view to substantial justice between the parties. (Code Civ. Proc., § 452; *Flynn v. Higham* (1983) 149 Cal. App. 3d 677, 679.) In ruling on a demurrer, the court considers the face of the pleading attacked and matters subject to judicial notice. (Code Civ. Proc. § 430.30(a).)

Discussion

A. Disability / Medical Condition Discrimination (3rd C/A)

To plead a cause of action based on disparate treatment discrimination, a plaintiff must plead (1) she suffers from a disability, (2) she is otherwise qualified to do her job, (3) she suffered an adverse employment action, and (4) the employer harbored discriminatory intent. (*Avila v. Continental Airlines, Inc.* (2008) 165 Cal.App.4th 1237, 1246.)

Defendant argues plaintiff does not allege the first of these elements. Plaintiff's opposition argues that stress is sufficient to qualify as a disability or medical condition. On this point, parties appear to agree. Stress, as long as it limits a major life activity, can qualify as a medical condition that subjects one to disability discrimination. However, the Court agrees with defendant that the severity of the stress alleged *here* is inadequate. Plaintiff alleges she felt stress in September, and again in October, but not that it continued when she returned to work in November. The complaint does not allege that continued severe stress limited her life activities in any way beyond the time she took her leave of absence.

As for the intent element of the cause of action, plaintiff does not sufficiently state what defendant knew, or how. Despite the opposition's failure to address this point, the Court notes paragraph 30 recites, "Defendants knew or should have known of Plaintiff's disability / medical condition and/or perceived Plaintiff with having a disability / medical condition as set forth above." It appears this "should have known" allegation is insufficient to set forth the intent required for this cause of action.

The demurrer is sustained with respect to the third cause of action, with leave to amend.

B. Failure to Engage in the Interactive Process (4th C/A)

In order to plead that the employer failed to engage in the interactive process, a plaintiff has to allege that she requested a reasonable accommodation and that defendant failed to participate in a timely, good faith interactive process. (*Gelfo v. Lockheed Martin Corp.* (2006) 140 Cal.App.4th 34, 54.) Unless a disability is obvious, it is the employee's burden to initiate the interactive process, and when a disability is not obvious, the employee must submit reasonable medical documentation confirming its existence. (*Kao v. University of San Francisco* (2014) 229 Cal.App.4th 437, 450, citations omitted.)

Here, as noted above, plaintiff fails to sufficiently allege a disability, or that defendant knew

about it. Accordingly, and lacking any allegations that her medical condition was obvious, defendant correctly points out that it had no obligation to initiate an interactive process pursuant to the facts pleaded.

In opposition to the demurrer, plaintiff argues that her taking medical leave triggered an obligation for defendant “to inquire” whether she needed “further” reasonable accommodations upon return. Plaintiff does not cite authority for this position and the Court is unaware of any such standard. Absent some factual allegation about the defendant’s notice, plaintiff fails to plead that it failed to engage in good faith in the interactive process to determine reasonable accommodations.

The demurrer is sustained with respect to the fourth cause of action, with leave to amend.

C. Failure to Accommodate Disability (5th C/A)

Under the FEHA, an employer that fails to make reasonable accommodation for an employee's known physical disability engages in an unlawful employment practice. (*A.M. v. Albertsons, LLC* (2009) 178 Cal.App.4th 455, 463, citing Gov. Code, § 12940, subd. (m).) The elements of a failure to accommodate claim are (1) the plaintiff has a disability under the FEHA, (2) the plaintiff is qualified to perform the essential functions of the position, and (3) the employer failed to reasonably accommodate the plaintiff's disability. (*Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1009-1010.)

Here, plaintiff fails to sufficiently allege a disability, or that defendant knew about it, as noted above. She also fails to allege any requested accommodation that defendant failed to provide. As noted in the demurrer, the complaint alleges that defendant *did* grant her medical leave, the only requested accommodation identified in the complaint.

In opposition to the demurrer, plaintiff argues that, while her request for accommodation was granted “on paper,” but was “negated” by her later being fired. This may amount to retaliation, discrimination, or wrongful termination, which are all separately alleged, but not a “de facto” failure to accommodate cause of action.

The demurrer is sustained with respect to the fifth cause of action, with leave to amend.

14. 9:00 AM CASE NUMBER: C25-03666
CASE NAME: CHRIS DAVIS VS. VIVINT SOLAR DEVELOPER, LLC
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: VIVINT SOLAR DEVELOPER, LLC
TENTATIVE RULING:

Defendants Sunrun, Inc. (“Sunrun”) and Vivint Solar Developer, LLC (“Vivint”, together with Sunrun, “Defendants”) bring this demurrer to the complaint (“Complaint”) of plaintiff Chris Davis (“Plaintiff”). Defendants challenge Plaintiff’s: (1) first cause of action for breach of contract and express warranty; (2) second cause of action for breach of implied warranties; (3) third cause of action for rescission; (4) fourth cause of action for statutory relief for failure to pay arbitration fees; and (5) fifth cause of action for punitive damages.

For the reasons discussed below, Defendants’ demurrer is **OVERRULED** with respect to the argument regarding assignment of the claims herein, the argument regarding uncertainty, and the cause of